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## Appeal Decision

Site visit made on 12 August 2026

**by Roger Catchpole BSc (hons) PhD CEcol MCIEEM IHBC**

an Inspector appointed by the Secretary of State

Decision date: 21 September 2026

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**Appeal Ref: 6004977**

**77 Long Street, Middleton, M24 6UN**

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for planning permission.
- The appeal is made by Mr M Suleman against Rochdale Metropolitan Borough Council.
- The application reference is 25/00577/FUL.
- The development proposed is a change of use of the former Middleton Conservative Club and Kohinoor Banqueting Hall into a new multi-functional events space including a part single/part two storey side extension, erection of external stairway and retaining wall, creation of access to rear and conversion of the former bowling green into a car parking area together with associated boundary treatments and landscaping.

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**This decision is issued in accordance with section 56 (2) of the Planning and Compulsory Purchase Act 2004 as amended and supersedes that issued on 2 September 2026.**

### Decision

1. The appeal is dismissed.

### Applications for Costs

2. An application for a full or partial award of costs was made by Mr Suleman against Rochdale Metropolitan Borough Council. An application is also made by the Council for a full award of costs against Mr Suleman. These applications are the subject of separate decisions.

### Preliminary Matters

3. As the proposal is in a conservation area and could affect the setting of a listed building, I have had special regard to sections 66(1) and 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (as amended) (the Act). The Council considered the setting of two other listed buildings to be affected but I do not share this view for the reasons set out below and do not consider them further in my main reasoning.
4. Insofar as the effect of the proposal on the setting, as it relates to the special interest of "83-78 Long Street" (Ref: 1481123), is concerned, I find that the massing of the intervening building and setback of the appeal site creates a visual discontinuity in an otherwise eclectic street frontage. The evidential value of the sliding sash windows of the top floor and their association with silk weaving would

remain unchanged and clearly legible. The way in which it is experienced would not be diminished by the proposal and its special interest would thus be preserved.

5. Turning to the effect of the proposal on the setting, as it relates to the special interest of the “Former National School” (Ref: 1068503), I find that the verdant and open areas to the north and to the rear of this building places it within a wholly different context and street scene in comparison to the dense urban grain which characterises the context of the appeal building. The setback of the appeal building, separation distance and the deviation of the road is such that there is no consistent visual relationship between the two. The way in which the listed building is experienced would not be diminished by the proposal and its special interest would thus be preserved.
6. The appellant attempted to submit late evidence concerning badgers after the deadline for submissions had lapsed. The appeal Start Letter sets out the necessary timetable including a link to the procedural guide. This clearly indicates that information outside of the normal time limits will usually be disregarded unless exceptional circumstances apply. These include a material change of circumstance, another relevant appeal decision, changes to legislation or Government policy and in the interests of natural justice. As none of these applied and neither the Council nor interested parties would have had an opportunity to comment, this evidence was not admitted.
7. A revised National Planning Policy Framework was published on 17 August 2026 (the Framework) prior to the determination of this appeal. The main parties have been given an opportunity to comment on changes relevant to their respective positions. I have taken their views into account in reaching my decision and am satisfied that no party has been prejudiced as a result.

## **Main Issues**

8. The Council failed to give notice within the statutory time period but has set out its putative reasons for refusal. Bearing this in mind, as well as the representations of interested parties and consultees, I find the main issues to be the effect of the proposal on:
  - the character and appearance of the area bearing in mind the special attention that should be paid to the desirability of preserving the special interest of the adjacent Grade II\* listed building, known as “Long Street Methodist Church Long Street Methodist Sunday School” (Ref: 1068504) (the LB), and the extent to which it would preserve or enhance the character or appearance of the Middleton Town Centre Conservation Area (the CA);
  - highway safety with respect to pedestrian access and movement within the site;
  - the living conditions of nearby residents with respect to noise and air quality; and
  - protected species with respect to badgers.

## **Reasons**

9. The appeal relates to a largely derelict building comprising the former Middleton Conservative Club which is a Regency period building constructed in a polite

classical style with red stock brick and Baroque stone trimmings. An unused bowling green is situated at a higher level, to the rear of the building which is identified as 'enhanced green space' within the Middleton Centre Masterplan. The property was originally built as a large family residence which was later extended and modernised. The building is identified as a non-designated heritage asset (the NDHA).

10. A raised car park is situated at the front of the building which incorporates a small row of shops that front directly onto the walkway of Long Street. This has led to the visual isolation of the main building which no longer fully engages with the active street scene. However, the massing and status of the building is nevertheless apparent from the entrance to the appeal site which is framed by two substantial stone piers with simply ornamented copings and a low stone wall with railings to one side.
11. The site levels rise considerably from Long Street through a combination of sloping ground and stepped, retaining walls situated to the rear of the building. The disused bowling green is situated at the highest level. This remains open and is surrounded by mature trees on two sides. Whilst long distance views are present to the southwest, this area is not intervisible with any views from the surrounding townscape or the CA.
12. The appeal site covers an area of approximately 0.3 ha and is bounded with walls to neighbouring buildings to the north and south, including the LB which abuts part of the northern boundary. The eastern boundary, to the front of the building, comprises a railing overlooking Long Street. The first floor of the facing buildings is at a similar level to the car park and comprises a number of residential dwellings above the shops below. The western boundary, to the rear of the building and the bowling green, is bounded by a light industrial site with residential buildings beyond.
13. The proposal is seeking to refurbish and extend the footprint of the building to the north in order to provide a new multi-use function space. Works would include a part single storey and part two-storey side extension designed to provide access to both floors of the existing building as well as the upper and lower levels of the site. This would include a reception area with a lift and staircase between levels as well as guest amenities and an office.
14. A car ramp would also be constructed along part of the northern boundary to provide access to new parking at the rear of the building on the area currently occupied by the bowling green. The existing car park would be retained and a total of 58 parking spaces would be provided to the front and rear of the building. The proposal would utilise the existing access from Long Street whilst retaining the wall and gate piers. Other works would include a new boundary treatment and landscaping as well as a sustainable drainage scheme which would provide biodiversity enhancements.

### *Character and Appearance*

15. The Council considers the scale and massing of the extension to be generally appropriate in terms of the established street scene. It views the architectural language and use of brick detailing as a positive and sympathetic response to the historic context of the site and I agree. I also note that the setback from the main elevation of the existing building and matching parapet level would provide a

degree of integration whilst clearly differentiating it from the historic building core in a respectful manner.

16. The Council suggests that the side and rear elevations are less well resolved but not sufficient to warrant refusal. However, I note from the plans that the side elevation of the proposed extension would comprise an articulated surface with a raised brick pattern as well as an ornamental sandstone banding course<sup>1</sup>. The same drawing also shows that highly constrained views of the new retaining wall from outside the site, to the north, would mostly be present along its lowest reach. I find this to be both an acceptable and consistent design approach.
17. In terms of the appearance of the retaining wall from within the site, I note the 'hit and miss' detailing and matching materials would provide a consistent architectural expression when juxtaposed with the detailing of the proposed extension. Whilst the rear elevation is mediocre and somewhat incongruent given the rounded portico entrance, I do not find that this significantly detracts to the point that it would harm the existing appearance of the building as a whole. I also note that this elevation would not be visible from the public domain.

### *Heritage*

18. The CA was first established in 1978 and covers an irregularly shaped area of approximately 16 ha to the north of the town centre of Middleton. The main thoroughfare and central axis of the CA is formed by Long Street. This comprises an eclectic range of shop frontages and buildings at its southernmost extent with prominent buildings, such as the LB, making a significant contribution to the historic street scene. Further significant visual anchors are provided by Middleton Library and the Local Studies Centre as well as the substantial 17<sup>th</sup> century, timber-framed, Old Boar's Head public house. The street scene becomes more open to the north of the public house as views are gained of Jubilee Park and the walled and wooded garden of the Rectory.
19. Remnants of its pre-industrialised textile manufacturing in the latter half of the eighteenth century still remain legible in some buildings, such as the 83-78 Long Street, where continuous lights reveal the original use of the upper floor for silk weaving. The accumulating wealth of this community from the progressive industrialisation of the textile industry to the south is exemplified in the range and status of its buildings and public open spaces. It also has a number of buildings designed by the notable architect Edgar Wood which significantly contributes to its architectural value.
20. Insofar as relevant to this appeal, I find the significance of the CA to be related to the historical layering and architectural diversity of its street scene and its well-integrated open spaces.
21. The LB was constructed in 1899 and originally formed a Wesleyan chapel and Sunday school and includes a number of subsidiary buildings. It was designed by Edgar Wood. It comprises header bond red brick and is rendered in parts, with stone dressings and a graduated stone slate roof. It is a tightly planned group arranged around a garden courtyard with access to Long Street through a prominent, arched gateway. The main entrance to the chapel projects and wraps around its eastern gable which fronts onto Long Street and is accessed via

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<sup>1</sup> Proposed Elevations with Existing Building (Ref:23.150.404 P1)

ascending steps. The architecture is in a Free Gothic style incorporating Arts and Crafts as well as Art Nouveau details.

22. Insofar as relevant to this appeal, I find the contribution of the setting to the special interest of this building to be tightly defined and associated with its immediate street frontage and the enclosed area within the courtyard.
23. The Council maintains that less than substantial harm would be caused to the CA by the loss of the bowling green as well as the visual and structural implications of the new access ramp and associated retaining wall. In terms of the latter, I do not find this to be the case for the reasons set out above and also because this classification no longer applies. Turning to the former, I observe that whilst the CA Appraisal notes the presence of the bowling green, it is not identified as a feature of any historic significance. Whilst the open space and mature trees flanking Long Street play an important role in helping to define the hierarchy of spaces, I observed that the bowling green does not play any role in helping to define this character given its lack of prominence.
24. I do not consequently find that the proposal would be detrimental to the character or appearance of the CA. This is because the loss of the bowling green would not have any effect on how open space within the CA is perceived and because I am satisfied that the ramp and retaining wall would be of an appropriate form and material. Furthermore, the bowling green is not visible from the public or private domain and Policy HE9(2) of the Framework states that proposals must be judged according to their effect on a CA as a whole and must therefore have a moderate degree of prominence. Given the above, I find that the proposal would not be detrimental to the CA and would thus preserve its significance.
25. Turning to the LB, the intervening street scene is such that there would be no effect on its setting which is primarily experienced from the immediate environs of Long Street. The proximity of its ancillary buildings to the northern boundary of the site is noted but these elevations are not part of the architectural set piece designed by Wood which addresses Long Street and the internal courtyard. Given the above, I find that no harm would be caused to the setting of the LB and that its special interest would consequently be preserved in terms of potential visual impacts.
26. However, I cannot rule out direct harm to the fabric of the listed building given the proximity of the ramp and the lack of detail concerning its construction. Although direct structural harm was not considered by the Council, this matter was raised by the current occupant of the LB who raised concerns over the stability of the retaining wall between the properties. Not only could groundworks lead to its collapse, but vibration from construction activities could also cause direct harm to the LB fabric. Whilst I have considered a condition to secure further detail and any mitigation that may be necessary, this would inevitably be predicated on an assumption that there would be an acceptable structural engineering solution within the parameters of the existing design. Consequently, I cannot be certain that such a condition would not amount to a material change that should, more appropriately, be considered as part of a new application.
27. Furthermore, Policy HE5(1) of the Framework states that development affecting a heritage asset should be accompanied by an assessment of the potential effect of the proposal on its significance. Having considered the appellant's Heritage

Statement, I note that no assessment of direct harm to the LB was considered. As such, I find that insufficient information has been provided and that harm to the significance of the asset cannot be ruled out. Policy HE6 of the Framework states that substantial weight should be given to the conservation of an asset and that the more important the asset, the greater the weight.

28. In this instance any potential harm to the LB would be localised and I do not consequently find that it would be substantial. Under such circumstances Policy HE6(4) of the Framework states that this harm should be weighed against any public benefits resulting from the proposal. As these overlap with the wider benefits of the scheme, I shall consider this as part of the final planning balance.
29. Policy HE7 of the Framework states that development proposals which would have a positive effect on NDHAs should be supported. Whilst bringing the building back into use should have a positive effect overall, there is a notable absence of a schedule of repair works to the historic fabric despite being requested by the Council at an early stage. Unless a comprehensive scheme for the repair and retention of historic fabric is secured then potential harm cannot be judged against the benefits, as required by Policy HE7(2) of the Framework. However, I am satisfied that this could be secured through a suitable condition and should not, therefore, be a reason for refusal, unlike the potential harm to the LB.
30. Given the above, I find that the proposal would not be consistent with the Act and would conflict with Policy P2 of the Rochdale Core Strategy (2016) (the CS) and Policy JP-S1 of the Places for Everyone Joint Development Plan (2024) (the JDP). These policies seek, among other things, to conserve key heritage assets and to ensure sustainable development through net gains across each of the different objectives.
31. Turning to wider matters of character and appearance and the setting of heritage assets, I am satisfied that no harm would be caused. The proposal would, insofar as these matters are concerned, be consistent with the Act and Policies DM1, P2 and P3 of the CS. These policies seek, among other things, to ensure that development is well designed and enhances the quality of an area, conserves and enhances townscape character, key heritage assets and NDHAs and conforms to key design principles that enhance identity and sense of place.
32. The Council has also drawn my attention to Policy JP-G1 of the JDP in its putative reason for refusal of this issue. However, as this relates to landscape character, I do not find it relevant to the foregoing issues.

### *Highway Safety*

33. The Local Highway Authority (the LHA) has confirmed that the amendments to the plans are satisfactory and that there are no outstanding objections in terms of the safe and efficient operation of the highway or vehicular access to the site<sup>2</sup>. Whilst a number of interested parties were concerned about increased traffic, these concerns were unsubstantiated and not consistent with the views of the LHA which the Courts have established, carries great weight. The Council maintains that there is still an outstanding issue insofar as pedestrian access to the site is concerned. More specifically, it highlights the absence of clear and intuitive,

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<sup>2</sup> Paragraph 8.66, Council's Statement of Case

segregated pedestrian routes through the site from the building access points to the main access on Long Street<sup>3</sup>.

34. It suggests that the revised proposals still fail to give due consideration and priority to pedestrian movements through the site and therefore give rise to conflict with Policy TR4(1)(a) of the Framework which seeks to give priority to walking, wheeling and then cycle movements. Although the putative reason for refusal also highlights substandard drop-off arrangements that are likely to result in reversing conflicts and congestion onto Long Street, I find this to be at odds with the LHA response which considered the revised plans, unlike the original response from Transport for Greater Manchester, upon which this concern is founded. The views of the LHA are consequently to be preferred on this matter.
35. The appellant maintains that a revised drawing showing revisions to internal movement through the site, including designated pedestrian walking routes, which addresses the Council's concerns<sup>4</sup>. However, I note that this still fails to adequately demonstrate any provision for a safe pedestrian access between Long Street and the building. In particular, there is no segregation at the existing site entrance and pedestrians would be forced to cross an area where cars are manoeuvring to enter and leave the site. This would place them in direct conflict with vehicles when seeking to either access the building via the rear car park entrance or the retained entrance at the front of the building.
36. I have considered whether this could be mitigated through the use of a suitably worded condition. However, given the constrained nature of the site and the dominance of the vehicular access arrangements, the provision of a safe and suitable pedestrian route may necessitate significant amendments to the layout, parking and circulation routes. This could amount to a material redesign of the development rather than the approval of a minor outstanding detail. As with the construction detail of the ramp, such a change should more rightly be considered through a new planning application.
37. Given the above, I find that the development would not provide a safe pedestrian access and would therefore be contrary to Policy TR4(1)(a) of the Framework. It would also be contrary to Policy T2 of the CS and Policy JP-C8 of the JDP. These seek, among other things, to ensure that development prioritises the needs of pedestrians and provides a safe and secure access to facilities through the layout and design of proposals.

### *Living Conditions*

38. The Council is concerned that the proposed development would result in unacceptable noise impacts on nearby residents, which includes the present and future occupants of the first-floor flat which is part of the main building. It maintains that the submitted noise assessment fails to adequately address the full range of noise sources and scenarios associated with the proposed use. It highlights potential noise from multiple events, music breakout, external plant operation and vehicle movements. It maintains that there would be a significant risk of adverse effects given the proximity of residential dwellings to the site and the potential for late-night disturbance.

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<sup>3</sup> Paragraph 8.67, Council's Statement of Case

<sup>4</sup> Proposed Accessibility Plan (Ref: 23.150.206 P1)

39. The appellant submitted an updated noise assessment the day before the appeal was lodged which the Council was unable to consult upon. However, it nevertheless points out that the potential impact on the present and future occupants of the flat would only be adequately addressed through the cessation of residential use. It highlights that fact that this is not part of the application nor indicated on the proposed plans and cannot be required by condition. It also notes that there is limited evidence as to the frequency and intensity of events in relation to the historic use of the building to support the assertion of unrestricted, past use.
40. Considering the updated assessment and memorandum, I am satisfied that the impacts on nearby residential receptors, with the exception of the flat, would be below the existing background and ambient levels for music breakout and vehicle movement bearing in mind that the revised assessment now includes the simultaneous operation of both wedding halls. I see no reason why residual noise impacts from car revving, firework detonation or external plant operation cannot be controlled via a suitable condition that either prohibit such activities and/or ensures that an emission threshold is set. Similarly, the opportunities for late night disturbance could be controlled through restricting the hours of operation.
41. Turning to the matter of the flat, I note that it would be within the highest external noise contours for vehicle movement and music breakout and would also be prone to disturbance from the comings and goings of vehicle owners parked nearby, loud conversations of groups of guests congregating outside the venue and transmitted vibrational sound through the building fabric. The appellant observes that this accommodation has historically been ancillary to the past operation of the building and is intended to remain as part of the proposed development. The appellant maintains that it does not function as a separate planning unit and should not be treated as a sensitive third-party receptor.
42. Be that as it may, the extent to which it can continue to function as ancillary residential accommodation is questionable given the proposed change of use which could adversely affect future occupants who might not be directly associated with the running of the venue, e.g. dependents of a caretaker. Whilst I accept that it is not a separate planning unit, it was open to the appellant to apply for a change of use to the flat as part of the wider scheme or to simply include it in the noise assessment so that suitable mitigation measures could be secured to ensure that it can remain habitable.
43. Even if only occupied by a caretaker, Policy P3(2)(a) of the Framework makes it clear that all development proposals need to provide healthy living conditions for occupiers in terms of avoiding exposure to pollutants, such as noise, that could have an unacceptable adverse effect on health and quality of life. The proposed change of use of the building represents a significant intensification of activity and it is unclear whether the continued, ancillary use of the flat would be possible under such circumstances without further assessment.
44. The other matter upon which this issue turns relates to potential changes in air quality. The Council notes that the appellant has failed to submit an Air Quality Assessment to demonstrate that the development would not result in an unacceptable deterioration in air quality or expose future occupiers to poor-quality air. It maintains that this omission is particularly significant given that the proposal would intensify the existing use of the site and introduce a new car park accommodating more than 50 vehicles as well as given the fact that the site is

within the Long Street Air Quality Management Area (the AQMA) which requires all development proposals to avoid unacceptable pollution impacts and incorporate appropriate mitigation.

45. The appellant acknowledges the AQMA but observes that no technical objection has been raised nor has any evidence been presented to demonstrate that the proposed reuse of the building would result in significant, adverse air quality impacts. However, it is the responsibility of the appellant to prove that this would not be the case given the obvious increase in the number of vehicles that would use the site and the concomitant potential for increased emissions, particularly during peak hours of use. Moreover, Policy P3(2)(c) of the Framework clearly states that development proposals should take account of AQMAs to ensure compliance with the relevant limit values and be consistent with the objectives of relevant Air Quality Action Plans. I see no evidence of compliance on these matters.
46. Whilst I have considered whether these harms could be addressed through suitably worded conditions, the air quality assessment is fundamental to determining the acceptability of the proposed development. Although sound proofing measures in relation to the flat could be effective, I do not have any indication as to whether these would be technically feasible in the absence of an assessment by a suitably accredited expert. As with the other conditions, the required mitigation could lead to a material change to the proposal which should, more rightly, be considered through a new application.
47. Given the above, I find that the proposal has the potential to harm the living conditions of adjoining and nearby residents and is therefore contrary to Policies P3(2)(a) and P3(2)(c) of the Framework. I also find that it would conflict with Policies DM1 and G9 of the CS and Policies JP-S1 and JP-S5 of the JDP. These seek, among other things, to secure sustainable development that mitigates against any impacts due to noise or air pollution and ensures that there are no unacceptable increases. They also require the submission of relevant air pollution data so that adverse impacts on air quality can be fully assessed.
48. The Council has also drawn my attention to Policy DM2 of the CS in its putative reasons for refusal of this issue. However, as this relates to planning contributions, I do not find it relevant to the foregoing issues.

### *Protected Species*

49. The Council highlights the fact that a badger survey was not completed and that this was necessary prior to determination. It points out that the impact on a badger sett constitutes a material consideration and that an adequate badger survey is needed otherwise it cannot be lawfully concluded that there would be no harm or what form mitigation might take. The appellant suggests that a badger survey could be conditioned and that its absence is insufficient grounds for refusal but has nevertheless attempted to submit one after the deadline for submissions, as considered above.
50. It is essential that the presence or otherwise of protected species, such as badgers, and the extent that they may be affected by the proposal is established before a planning permission is granted. As the Council points out, this is because any such decision risks not taking into account a relevant material consideration and securing any mitigation that may be necessary. The need to ensure surveys

are carried out should therefore only be left to planning conditions in exceptional circumstances, as set out in the relevant British Standard<sup>5</sup>. No such circumstances apply in this instance.

51. Given the above, I find that the proposal has the potential to harm a protected species and is therefore contrary to Policy N2(1)(f) of the Framework. I also find it would be contrary to Policy G7 of the CS and which seeks, among other things, to ensure that development protects existing biodiversity.
52. The Council has also drawn my attention to Policy JP-G8 of the JDP in its putative reasons for refusal of this issue. However, as this relates to securing a net biodiversity enhancement, I do not find it relevant to the foregoing issue and also note that there is no dispute that a biodiversity net gain could be secured.

### **Planning Balance**

53. The appellant highlights a number of benefits:
  - Securing a use for the NDHA that would be consistent with its conservation and prevent further deterioration. I accept that a consistent use would be beneficial but the extent to which this would be secured is equivocal given the absence of a comprehensive scheme for the repair and retention of historic fabric. I consequently give this limited weight in favour of the development.
  - The provision of social benefits relating to health, wellbeing and inclusion as well as enhancing community, cultural and leisure opportunities within the borough. I have no doubt that the proposal would lead to the creation of a space that would be of value to the local community which could accommodate a range of uses. This would be consistent with its former use and focus as a community hub. However, the extent to which there is an unmet need is unclear from the evidence before me. I consequently give this limited weight in favour of the development.
  - Economic benefits from improving the vitality and viability of the Middleton Town Centre through the reintroduction of an active town centre use that would generate employment and associated expenditure. I accept that there would be a positive benefit in terms of bringing the building back into active use which would have an economic benefit. I also note a number of empty commercial properties in the wider area. Policy E2(1)(a) of the Framework stresses the need to support business growth and the economic benefits of commercial development and determines the weight that should be given. This consequently carries substantial weight in favour of the development.
  - The effective use of previously developed land within a defined urban area. Policy L2(1)(b) of the Framework stresses the importance of making better use of vacant and underutilised land and buildings and determines the weight that should be given. This consequently carries substantial weight in favour of the development.

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<sup>5</sup> BS 42020:2013 Biodiversity: Code of Practice for Planning and Development.

- Environmental improvements arising from the sustainable drainage, landscaping and the delivery of a Biodiversity Net Gain. As these are no more than is needed to make the proposal acceptable in planning terms, I consequently give this limited weight in favour of the development.
54. The development of this largely derelict building and the social and economic benefits that it would bring are not insignificant when considered in the round. Added to this is the policy imperative of the weight to be afforded to making better use of vacant buildings and economic growth from commercial development which is substantial, according to the Framework.
  55. In terms of the public benefit balance of the harm that would be caused to the adjacent LB, there are clearly some significant public benefits relating to economy and use of a vacant building. This comes at a potential cost in terms of a failure to ensure that the historic fabric of the adjacent LB is preserved. It seems to me that there is not a clear and convincing justification for potential serious harm to be accepted which could be resolved through the submission of further information. Bearing in mind that the LB is an asset of the highest significance<sup>6</sup>, I do not find the public benefits sufficient to outweigh the harm that might be caused in this instance.
  56. Considering the wider balance, I find that the likely harm to the adjacent LB carries substantial weight in accordance with Policy HE6(1) of the Framework. Harm to the living conditions of existing and future residents of nearby and adjoining dwellings also carries substantial weight due to the potentially serious implications for human health. I give the lack of a safe pedestrian access to the site significant weight, bearing in mind the harm that would result from potential vehicular conflict. I give the harm to badgers moderate weight, bearing in mind the potential effect on a species protected by law. Overall, I find that these are sufficient to outweigh the benefits of the scheme.
  57. Section 38(6) of the Planning and Compulsory Purchase Act 2004 (as amended) requires that planning applications be determined in accordance with the development plan unless material considerations indicate otherwise. Although there would be compliance with some aspects of the development plan, such as Policies SO2, C6 and C8 of the CS, this is outweighed by the conflict I have found with policies G7, G9, T2 and DM1 of the CS and Policies JP-S1, JP-S5 and JP-C8 of the JDP. Consequently, I find that the proposal would conflict with the development plan when read as a whole.
  58. I do not find that material considerations are of sufficient weight in this instance to indicate that a decision should be made that is not in accordance with the development plan. I therefore conclude that, on balance, the appeal should be dismissed.

## Conclusion

59. For the above reasons and having regard to all other matters raised, I conclude that the appeal should be dismissed.

*Roger Catchpole*

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<sup>6</sup> HE6(6)

INSPECTOR